PROPOSITION 317

HOUSE CONCURRENT RESOLUTION 2055

A CONCURRENT RESOLUTION

ENACTING AND ORDERING THE SUBMISSION TO THE PEOPLE OF A MEASURE RELATING TO THE ARIZONA DEPARTMENT OF HOMELAND SECURITY.

Be it resolved by the House of Representatives of the State of Arizona, the Senate concurring:

1. Under the power of the referendum, as vested in the Legislature, the following measure, relating to the Arizona department of homeland security, is enacted to become valid as a law if approved by the voters and on proclamation of the Governor:

AN ACT

AMENDING TITLE 41, CHAPTER 41, ARTICLE 1, ARIZONA REVISED STATUTES, BY ADDING SECTION 41-4256; RELATING TO THE ARIZONA DEPARTMENT OF HOMELAND SECURITY.

Be it enacted by the Legislature of the State of Arizona:

Section 1. Title 41, chapter 41, article 1, Arizona Revised Statutes, is amended by adding section 41-4256, to read:

41-4256. Drug cartels; terrorist organizations; definitions

A. THIS STATE DECLARES THAT DRUG CARTELS ARE TERRORIST ORGANIZATIONS. THE DEPARTMENT SHALL DO EVERYTHING WITHIN ITS AUTHORITY TO ADDRESS THE THREAT POSED BY DRUG CARTELS.

B. NOTHING IN THIS SECTION SUPPORTS AN ALIEN'S CLAIM FOR ASYLUM UNDER FEDERAL LAW.

C. FOR THE PURPOSES OF THIS SECTION:

1. "DRUG CARTEL" MEANS AN ONGOING FORMAL OR INFORMAL ASSOCIATION OF PERSONS IN WHICH MEMBERS OR ASSOCIATES INDIVIDUALLY OR COLLECTIVELY ENGAGE IN ANY OF THE FOLLOWING:

(a) HUMAN SMUGGLING.

(b) DRUG TRAFFICKING FOR PROFIT.

(c) ANY ACT OF TERRORISM DEFINED IN SECTION 13-2301.

2. "THREAT" MEANS ANYTHING DESIGNED TO DISTURB, VIOLATE OR CAUSE HARM TO INDIVIDUAL RIGHTS GUARANTEED UNDER THE STATE AND FEDERAL CONSTITUTIONS OR TO THE PUBLIC SAFETY, HEALTH OR GENERAL WELFARE OF THE PEOPLE.

Sec. 2. Legislative findings

The legislature finds:

1. Arizona voters overwhelmingly passed the Secure the Border Act, proposition 314, at the 2024 general election.

2. When voters passed proposition 314, the voters found that "[d]ue to weaknesses in immigration enforcement, a public safety crisis is occurring in Arizona, caused by transnational cartels engaging in rampant human trafficking and drug smuggling across this state's southern border".

3. The voters further found that "[f]rom 2021 to 2023, United States customs and border protection encountered two hundred eighty-two individuals on the terrorist watchlist illegally entering the southwest border between ports of entry" and that "[t]his is a 3033% increase over the prior three years when only nine such individuals were encountered".

4. The voters further found that "[f]rom 2021 to 2023, the amount of fentanyl seized at the southwest border almost tripled, amounting to billions of doses of fentanyl", that illicit fentanyl "is primarily produced in foreign nations and smuggled across the southwest border" and that "[t]ransnational cartels fund their operations by trafficking this deadly drug across the southwest border".

5. Based on the findings listed in paragraphs 1 through 4 of this section and other substantial evidence, the voters concluded that the state of Arizona is being "actually invaded" as defined in article I, section 10 of the United States Constitution.

6. According to the United States drug enforcement administration's 2024 national drug threat assessment, synthetic drugs have transformed not only the drug landscape in the United States with deadly consequences to public health and safety, synthetic drugs have also transformed the criminal landscape in the United States, as the drug cartels that make these drugs reap huge profits from their sale.

7. The council on foreign relations, a nonpartisan, independent national membership organization, has concluded that transnational criminal organizations dominate the import and distribution of cocaine, fentanyl, heroin, marijuana and methamphetamine in the United States.

8. This legislation is necessary to address the public safety crisis at Arizona's border, to fulfill voters' intent as expressed in proposition 314 and to empower the Arizona department of homeland security to do everything within its authority consistent with this state's declaration that drug cartels are terrorist organizations for purposes of Arizona law.

2. The Secretary of State shall submit this proposition to the voters at the next general election as provided by article IV, part 1, section 1, Constitution of Arizona.

ANALYSIS BY LEGISLATIVE COUNCIL

Proposition 317 would declare that drug cartels (associations of persons engaging in human smuggling, drug trafficking for profit or any act of terrorism) are terrorist organizations.

The proposition would:

1. Require the Arizona Department of Homeland Security to use all lawful means available within its authority to address threats posed by drug cartels.

2. Declare that this proposition does not support an alien's claim for asylum under federal law.

Notice: Pursuant to proposition 105 (1998), these measures cannot be changed in the future if approved on the ballot except by a three-fourths vote of the members of each house of the legislature and if the change furthers the purpose of the original ballot measure, by an initiative petition or by referring the change to the ballot.

ARGUMENTS "FOR" PROPOSITION 317

As a father of three, safety is one of my top issues of concern – and I know it is for most Arizonans I speak to. Securing Arizona's border and holding criminals accountable is critical to public safety. There is no question that the violent drug cartels operating along Arizona's border constitute a grave threat to the safety of Arizonans, law enforcement, the individuals they smuggle, and the kids, teens, and communities harmed by the flow of fentanyl and other drugs. These criminal cartels utilize our highway systems and some have even made our state the primary corridor for their predatory acts of terror against innocent people. In reality, these cartels are acting as terrorist organizations. Prop 317 categorizes them as such, unleashing the full authority of our state's government and Arizona Department of Homeland Security to fight back and protect Arizonans. In fact, Prop 317 not just allows, but requires, that AZDOHS do everything within its authority to fight back against the cartels, ensuring that Arizonans will be protected regardless of partisan politics or the whims of whoever may be directing the department. That's why I'm urging Arizonans who are concerned for the safety of their children, neighborhood and community to vote YES on Prop 317.

George Khalaf, Scottsdale

ARGUMENTS "AGAINST" PROPOSITION 317

HCR 2055 – Label drug cartels as terrorist organizations. Needless to say, this is a waste of our time and that of our legislators. It's symbolic legislation that does nothing other than to make the MAGA legislature feel warm and fuzzy. The Governor vetoed a similar measure from the legislature, but our MAGA wackadoodles would rather see it in black and white on a two-page, four-sided ballot. Vote No on Proposition HCR 2055.

Timothy Everhard, Director, Arizonans for Freedom, Peoria

BALLOT FORMAT

PROPOSITION 317

REFERRED TO THE PEOPLE BY THE LEGISLATURE RELATING TO THE ARIZONA DEPARTMENT OF HOMELAND SECURITY

OFFICIAL TITLE AMENDING TITLE 41, CHAPTER 41, ARTICLE 1, ARIZONA REVISED STATUTES, BY ADDING SECTION 41-4256.
DESCRIPTIVE TITLE DECLARES THAT DRUG CARTELS ARE TERRORIST ORGANIZATIONS; DIRECTS THE ARIZONA DEPARTMENT OF HOMELAND SECURITY TO DO EVERYTHING IN ITS AUTHORITY TO ADDRESS DRUG CARTELS.

A "yes" vote shall have the effect of: (1) declaring drug cartels as terrorist organizations and directing the Arizona Department of Homeland Security to do everything in its authority to address threats posed by drug cartels; (2) defining "drug cartel" to mean an ongoing formal or informal association of persons engaged in human smuggling, drug trafficking, or any act defined as terrorism under Arizona law; and (3) clarifying that this measure does not support an alien's asylum claim.	**YES** ☐
A "no" vote shall have the effect of maintaining the current laws relating to terrorism and the Arizona Department of Homeland Security.	**NO** ☐